

		would, in most cases, obviate the need to rule on the demurrer at all or, at the very least, in its entirety.” (Martin v. Inland Empire Utilities Agency (2011) 198 Cal.App.4th 611, 629.) “Under the sham pleading doctrine, plaintiffs are precluded from amending complaints to omit harmful allegations, without explanation, from previous complaints to avoid attacks raised in demurrers or motions for summary judgment.” (Deveny v. Entropin, Inc. (2006) 139 Cal.App.4th 408, 425.) The motion is denied to the extent the SAC seeks to re-allege claims that the Court found were not subject to the SLAPP statute, i.e. paragraphs 25 and 26 which alleged the law firm wrongfully represented certain of the LLC’s members and refused to provide information related to its representation of the LLC to the other member. This includes the SAC’s paragraphs 15, 18, and portions of paragraph 40 (except paragraph 40’s references to making false statements to “the court”). The motion is also denied as to the “incorporating” allegations at paragraphs 28 and 32. However, to the extent discovery reveals any of these allegations are based on protected conduct, they may be subject to dismissal at a later stage. The motion is granted as to Plaintiff’s attempt to re-allege claims which were previously stricken in the 11/20/25 order, i.e. claims which arise from Defendants’ filing and service of legal documents and/or asserting certain positions in active litigation. This includes the remaining allegations at paragraphs 19, 20, 21, 23, 26, and 27, which are attempts at “sham pleading” to avoid the effect of the anti-SLAPP ruling. It also includes the allegation in paragraph 40 that Defendants made “false representations...to...the court.
4	24-01376047 <i>Curran vs. Rivian Automotive, Inc.</i>	Motion to Strike or Tax Costs Plaintiff Elizabeth Curran’s Motion to Tax Costs is GRANTED. Defendants’ memorandum of costs seeks only discretionary costs. The parties do not dispute the FEHA and non-FEHA claims are inextricably intertwined, thus, Government Code section 12965(c)(6) applies to all costs instead of Code of Civil Procedure section 1032. For a defendant to recover costs under Government Code section 12965(c)(6) the court must find “the action was objectively without foundation when brought, or the plaintiff continued to litigate after it clearly became so.” (<i>Williams v. Chino Valley Independent Fire Dist.</i> (2015) 61 Cal.4th 97, 115.) “The clerk has no authority to exercise discretion in awarding costs, let alone to make the frivolousness finding required by Government Code section 12965; the cost memorandum was therefore an ineffective means of seeking costs in this FEHA case. This same conclusion was drawn in <i>Anthony v. City of Los Angeles</i> (2008) 166 Cal.App.4th 1011, 1015-1016. In <i>Anthony</i>, the court concluded the appellant was not required to file a timely cost memorandum to preserve its right to seek expert costs

		that were not recoverable as a matter of right under Code of Civil Procedure section 1032. As the court pointed out, the cost memorandum applies only to ‘cost items to which a party is entitled “as a matter of right” ’ ” (<i>Neeble-Diamond v. Hotel California By the Sea, LLC</i> (2024) 99 Cal.App.5th 551, 557-558.) Here, all costs are discretionary and dependent on the Court finding frivolousness. Thus, all costs cannot be claimed in a memorandum of costs and must be claimed through a motion. Therefore, Defendants’ memorandum of costs is taxed in its entirety because the clerk lacks authority to award any costs.
5	23-01330456 <i>Hayes vs. Dennis Horton Construction Worker’s Tax Service</i>	Motion to Compel Answers to Form Interrogatories Judgment Creditor Jacqueline Martinez’s Motion to Compel Responses to Judgment Debtor Interrogatories, Set One, is GRANTED. Legal standard A judgment creditor may propound written interrogatories to the judgment debtor in the manner provided by Code of Civil Procedure section 2030.030. (Code Civ. Proc., §§ 708.010, 708.020.) The interrogatories may be enforced in the same manner as interrogatories in a civil action. (Code Civ. Proc., § 708.020, subd. (c).) Code of Civil Procedure section 2030.290, provides, in part: “If a party to whom interrogatories are directed fails to serve a timely response, . . . the party propounding the interrogatories may move for an order compelling response to the interrogatories.” The failure to serve a timely response also waives any objections to the requests. (Code Civ. Proc., § 2030.290, subd. (a).) Section 2030.290, subdivision (c) further provides the court “shall” impose a monetary sanction against any party “who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” On 12/12/25, Judgment Creditor served Judgment Debtor Interrogatories, Set One, on Judgment Debtor. (Cohen Decl., ¶ 9, Ex. G.) After not having received timely responses, Judgment Creditor’s counsel followed up with Judgment Debtor’s counsel on 1/14/26 and 1/15/26 but did not receive a response. (Cohen Decl., ¶¶ 11, 13, Exs. H, I.) Counsel followed up again on 1/16/26 and Judgment Debtor’s counsel stated he would provide the responses “next week.” (Cohen Decl., ¶¶ 14, 15, Ex. J.) After not having received responses, Judgment Creditor’s counsel followed up on 1/19/26 and 1/20/26 and on 1/20/26 Judgment Debtor’s counsel stated he would provide responses “in the next 48 hours or sooner.” (Cohen Decl., ¶¶ 16, 17, Exs. K, L.) No responses were provided. (Cohen Decl., ¶ 17.)